Works Council Agreement on the Use of AI and Digital Tools

Betriebsvereinbarung über den Einsatz von Künstlicher Intelligenz und digitalen Werkzeugen

Document ID: KA-BV-AI-2026 | **Version:** 1.0 | **In force:** 1 September 2026 | **Parties:** Kleinanzeigen management (Geschäftsführung) and the Works Council (Betriebsrat) | **Term:** until 31 August 2028

Related documents: KA-AI-POL-001 Internal AI Policy; KA-AI-TOOLS-002 Approved AI Tools List; KA-AI-PROJ-004 Past AI and Process Projects.

FICTIONAL DEMO DOCUMENT for an Ironhack bootcamp project. It is not an actual Kleinanzeigen works council agreement and is not legal advice.

Preamble

Kleinanzeigen is becoming a standalone company. Management and the Works Council agree that AI can remove friction from daily work and improve service for users, and that employees should help shape how it is used. AI must support people, not watch them. This agreement sets clear, fast rules: common uses are pre-approved (Annex 1), changes to work are shared early (section 4), and uses that can monitor or evaluate employees need the Works Council's consent (section 5).

§ 1 Scope

This agreement applies to all employees of Kleinanzeigen covered by the Works Constitution Act (Betriebsverfassungsgesetz, BetrVG), and to all AI systems and digital tools used at work, whether internal, external or in pilot. It implements the Works Council's rights under BetrVG section 87(1) no. 6 (technical devices that can monitor behaviour or performance), section 90 (information and consultation on new technology and work processes) and section 80 (general duties).

§ 2 Definitions

Terms such as AI system, internal tool, approved external tool, pilot tool, data classes D1 to D5 and the risk levels Green, Amber and Red have the meaning given in the Internal AI Policy KA-AI-POL-001. **Employee data** means any data that can be linked to an individual employee, including usage logs of AI tools.

§ 3 Principles

• **3.1 Support, not surveillance.** AI tools must not be used to monitor, score, rank or evaluate the performance or behaviour of individual employees, unless agreed under section 5.

• **3.2 Human decisions.** Decisions about employees (hiring, pay, promotion, task allocation, warnings, termination) are always made by people. AI may not make or prepare such decisions without a supplementary agreement under section 5.

• **3.3 Transparency.** Employees can always see which AI tools are approved and what data they use (KA-AI-TOOLS-002), and are told when they interact with an AI system.

• **3.4 Qualification.** Every new tool or major change comes with training. Training time is working time.

• **3.5 Employment security.** Efficiency gains from AI are not a reason for operational dismissals during the term of this agreement. Affected employees are offered retraining or a comparable role.

• **3.6 Bottom-up first.** Employees are encouraged to propose AI and process improvements for their own work (section 9).

§ 4 Information Duty for Changes to Work (Policy rule A5)

Before an AI tool is introduced, or an existing tool is changed in a way that noticeably changes how a team works, its workload or its tools, management informs the Works Council. This simplified procedure applies when the use does **not** monitor or evaluate employees.

Step	What happens	Time
4.1 Inform	The requesting team or the AI Governance Board posts the information form (Annex 3) to the Works Council representative on the AI Governance Board.	Before rollout
4.2 Questions	The Works Council may ask questions or request a meeting.	Within 10 working days
4.3 Proceed	If the Works Council raises no objection within 10 working days, the rollout may start. If it objects because the use may monitor employees, section 5 applies.	After day 10
4.4 Review	After 3 months the team shares adoption and feedback with the Works Council.	3 months after rollout

Uses listed in Annex 1 are pre-approved and need no information under this section.

§ 5 Co-determination Procedure (Policy rules R3 and R4)

Any AI use that can monitor or evaluate employees' behaviour or performance (BetrVG section 87(1) no. 6), or that supports decisions on hiring, promotion, task allocation or termination (EU AI Act Annex III, high-risk), needs the Works Council's consent in a supplementary agreement (Ergänzungsvereinbarung).

Step	What happens	Time
5.1 Proposal	Written proposal: purpose, tool, data used, affected employees, why a less intrusive option is not enough, Data Protection Impact Assessment (DPIA).	Start
5.2 Review	The Works Council reviews the proposal and may call in an external expert (BetrVG section 80(3)).	Up to 4 weeks
5.3 Pilot (optional)	Limited pilot with volunteers only, max 3 months, no individual evaluation of results.	Max 3 months
5.4 Agreement	Consent is given in a supplementary agreement that sets purpose, data, access, retention and evaluation limits.	After review or pilot
5.5 No agreement	If the parties cannot agree, either side may call the conciliation board (Einigungsstelle). Until then the use does not start.	As needed

§ 6 Data Protection and Evaluation Ban

• **6.1** Usage logs, prompts and outputs of AI tools must not be used to evaluate individual employees or for disciplinary action, except for proven deliberate misuse handled under normal HR processes.

• **6.2** Usage statistics may be reported only at team or department level, and only for groups of **at least 5 employees**.

• **6.3** Personal usage logs are deleted after 90 days at the latest, unless needed for a security incident.

• **6.4** Employee data (D5) is not entered into any AI tool without a supplementary agreement under section 5.

§ 7 Transparency for Employees

• **7.1** The Approved AI Tools List (KA-AI-TOOLS-002) is available to all employees and updated monthly.

• **7.2** Customer-facing or employee-facing chatbots say clearly that they are AI.

• **7.3** Participation in pilots is voluntary. Saying no has no negative consequences.

• **7.4** Employees may ask the AI Governance Board how a tool used in their work handles their data.

§ 8 Qualification and Rollout

Every rollout of a new tool, or a major change to an existing one, includes training before or at go-live (at least a short team session and a written guide), a named contact, and a feedback channel. Launching a tool by email alone does not meet this requirement. Teams may request refresher training at any time.

§ 9 Employee-initiated Improvements

• **9.1** Employees may submit process friction and AI ideas through "Fix My Process" or #ai-governance-review. Submissions are stored at department level, without names.

• **9.2** Submissions and feedback (including reasons for not using a tool) must not be used to evaluate the person who submitted them.

• **9.3** The Works Council receives a quarterly report of submissions at department level (groups of 5 or more).

• **9.4** Ideas that need section 4 or section 5 follow those procedures; the submitter is told the outcome.

§ 10 Works Council Role on the AI Governance Board

The Works Council appoints one representative to the AI Governance Board. The representative may mark any case as **"co-determination required"**, which pauses the case until section 5 is completed. For all other cases, the representative takes part in the Board's joint weekly review and may ask for the section 4 information.

§ 11 Term and Termination

This agreement is in force from 1 September 2026 until 31 August 2028. It may be terminated with three months' notice. After it ends, its rules continue to apply until a new agreement is made (Nachwirkung). Changes to the Annexes can be agreed in writing by the AI Governance Board including the Works Council representative.

Annex 1: Pre-approved Uses (Policy rule G5)

These uses need no information or consent, as long as the tool is approved for the data class used (KA-AI-TOOLS-002), a person checks the output, and no individual employee is evaluated.

#	Pre-approved use	Example tools
1	Drafting, rewriting and summarising texts	KAi Assist, Microsoft 365 Copilot, Atlassian Intelligence
2	Translating internal documents and messages	DeepL Pro, KAi Assist, Ticket Lens (customer messages)
3	Searching internal knowledge with sources	Knowledge Finder
4	Writing spreadsheet formulas, queries and analysing aggregated tables	KAi Assist, Microsoft 365 Copilot, Insight Desk (pilot users)
5	Summarising customer tickets and suggesting categories and macros; the agent sends	Ticket Lens
6	Scheduled reports, reminders and data transfers with D1 or D2 data	FlowMate, Zapier (pilot teams)
7	Clustering workshop notes and drawing process maps	Miro AI
8	Code completion and review	GitHub Copilot Business

Annex 2: Uses that Always Need Co-determination (section 5)

Use	Why
Productivity, activity or speed scoring of individual employees or agents	Monitors performance (BetrVG 87(1) no. 6; Policy R3)
Recording or transcribing meetings or calls with colleagues	Records behaviour and speech (Policy R3)
Routing or assigning work to individual agents based on their measured performance	Task allocation based on personal performance (EU AI Act Annex III; Policy R4)
AI screening, ranking or scoring of job candidates	High-risk employment use (Policy R4)
Location, attendance or keystroke analysis	Monitors behaviour (Policy R3)
Emotion recognition of employees	Prohibited under EU AI Act Article 5 (Policy R5)

Annex 3: Information Form (section 4)

Department (no names) · Problem being solved · Tool and status (approved / pilot) · Data class used · Teams and number of employees affected · How work changes (tasks, workload, tools) · Training plan · Start date · Confirmation that no individual monitoring or evaluation takes place.